

Mithai Lal v. U.P. Power Corporation Ltd. & Others

High Court of Judicature at Allahabad · Division Bench · 28 March 2023 · Writ - C No. 49567 of 2010 · **Writ disposed; recovery of Rs. 1,24,517 stayed on deposit of Rs. 12,208; petitioner to object to the bill before respondent no. 2, who is to decide by a speaking order; liberty to appeal under the Electricity Act, 2003 and the Supply Code, 2005**

HEADNOTE

Where a consumer challenges an electricity bill that treats a domestic connection as commercial, the writ court will not decide the tariff classification. Recovery of the commercial demand is stayed if the consumer deposits the amount he says is due at domestic rates; he must file an objection to the bill before the licensee officer, who is to decide by a speaking order, and until that decision no further recovery is to be made. If the speaking order goes against him, he has liberty to appeal under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. The Court did not decide whether the connection was domestic or commercial, or the correctness of Rs. 1,24,517.

FACTUAL SUMMARY

Mithai Lal, holding a domestic electricity connection, filed Writ-C No. 49567 of 2010 against U.P. Power Corporation Ltd. challenging a bill dated 25 January 2010 that treated the connection as commercial and demanded Rs. 1,24,517. He contended that at domestic rates the demand could not exceed Rs. 12,208 as put in 2010, or Rs. 17,208 of which he had already deposited Rs. 5,000 as put in 2023.

On 19 August 2010 a Division Bench stayed recovery of Rs. 1,24,517 if he deposited Rs. 12,208 within fifteen days. That interim continued through 2010 listings after the licensee did not file a counter-affidavit. When the writ was heard on 28 March 2023, the petitioner relied on Somai v. U.P. Power Corporation Ltd. (Writ-C No. 47278 of 2010, 3 March 2023) and asked that this petition be disposed of in the same terms.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

domestic billed as commercial — objection to the bill before the licensee; speaking order; recovery stayed on deposit of the domestic figure

QUESTION

Where a consumer challenges an electricity bill that treats a domestic connection as commercial, will the writ court decide the tariff classification?

HOLDING

No. Recovery of Rs. 1,24,517 on the bill dated 25 January 2010 shall remain stayed if the petitioner deposits Rs. 12,208 within fifteen days; default automatically discharges the stay. He shall file an objection to the bill before respondent no. 2 within three weeks; that officer shall decide by a speaking order; until the objection is decided, no further recovery shall be made on the bill. The Court did not decide whether the connection was domestic or commercial.

¶ order of 28.3.2023

FLAG The Court cited no clause. It directed an objection to the bill before respondent no. 2 and a speaking order, then liberty to appeal under the Act and the Code. Keyed to Clause 6.5 as the billing-complaint procedure that this pattern matches; the Court's reference to an 'assessment order' and an appeal under the Act could equally engage Clause 6.8 / Section 126 then Section 127 if commercial billing is treated as unauthorised use — the order does not say. Catalog hit UP-2005::3.3(e) is not attracted: the order does not discuss professional use of residential space. Source PDF compiles unnumbered 2010 listing/stay sheets plus 21.3.2023 (counsel's name) and the 28.3.2023 disposal; pins refer to that disposal. The 2023 order recites a domestic ceiling of Rs. 17,208 (Rs. 5,000 already deposited) but still directs deposit of Rs. 12,208, the 2010 figure.

HOLDING-UNIT · EA2003::127

liberty to appeal the speaking order on the bill objection

QUESTION

If the speaking order on the bill objection goes against the consumer, what further remedy remains?

HOLDING

The petitioner will have liberty to file an appeal against that assessment order as per the provisions of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. ¶ [order of 28.3.2023](#)

FLAG The Court named neither Section 127 nor a Code appeal clause. Keyed to Section 127 because the order calls the result of the objection an 'assessment order' and then an appeal under the Act; a Code-only CGRF/Ombudsman route was not discussed.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The challenge to the 25.1.2010 commercial bill was not decided on merits. The consumer was directed to object before respondent no. 2, who is to pass a speaking order, with recovery stayed on deposit of the domestic figure. ¶ [order of 28.3.2023](#)

domestic-vs-non-domestic-use-is-a-disputed-question-of-fact Whether the petitioner's domestic connection was rightly billed at commercial rates, and whether Rs. 1,24,517 or the domestic figure was due, was left to the objection and speaking order. ¶ [order of 28.3.2023](#)

alternate-remedy-supply-code-appeal If respondent no. 2's speaking order goes against the petitioner, he has liberty to appeal under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. ¶ [order of 28.3.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S CONNECTION WAS DOMESTIC OR COMMERCIAL, AND WHETHER COMMERCIAL TARIFF WAS LAWFULLY APPLIED

The 2010 and 2023 orders record the contention; the 28.3.2023 disposal left it to the objection and speaking order.

¶ [order of 28.3.2023](#)

NOT DECIDED — CORRECTNESS AND QUANTUM OF RS. 1,24,517 AS AGAINST RS. 12,208 / RS. 17,208

The 2023 order recites a domestic ceiling of Rs. 17,208 (Rs. 5,000 already deposited) but directs deposit of Rs. 12,208; neither figure was adjudicated. ¶ [order of 28.3.2023](#)

NOT DECIDED — WHETHER THE PETITION SHOULD BE DISPOSED OF IN TERMS OF SOMAI V. U.P. POWER CORPORATION LTD. (WRIT-C NO. 47278 OF 2010, 3.3.2023)

The petitioner prayed for disposal in those terms; the Court gave its own directions without reciting Somai's holding or saying it was following that order. ¶ [order of 28.3.2023](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Somai v. U.P. Power Corporation Ltd.</i> Writ-C No. 47278 of 2010, judgment dated 3.3.2023 Allahabad High Court	Relied on by the petitioner, who prayed that this writ be disposed of in the same terms; the Court did not recite Somai's holding or say it was following that order.		Petitioner	Relied on

SCJ-3073 · Mithai Lal v. U.P. Power Corporation Ltd. & Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.